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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 3RD DAY OF DECEMBER 1998

BEFORE

THE HON'BLE MR. JUSTICE M.P. CHINNAPPA

C.P.510/1998

c/w

C.P.557/1998

BETWEEN:

Gurulingappa,
s/o. Parappa Pundikagi,
major, Occ: Agriculture,
R/o. Udagatti Tq and Dist.
Bagalkot.
(By Sri.S.G. Kulkarni, Adv)

... PETITIONER IN
CP.510/1998

AND:

1. Basavaraj
s/o. Gurulingappa,
Pundikatagi, major,
Occ: Business, Chikakwad,
compound, Vivekanandnagar,
At & Dist. Dharwad.
2. Smt. Shareads w/o. Gurulingappa
Pundikatagi, major,
Occ: Household work,
r/o. Udagatti Tq & Dist
Bagalkot.
3. Shivakumar, s/o. -do-
Occ: Business, R/o. Laxminagar,
At & Post: Dharwad.
4. Vithal Venkappa Raghannavar,
major, Occ: Agriculture,
R/o. Jinnur, Tq: Mudhol,
Dist: Bagalkot.

... RESPONDENTS IN
CP.510/1998

(By Sri.J.S. Shetty, Adv)

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This CRP is filed under Sec.24 CPC to
order for withdrawal of O.S.No.95/98 pending
on the file of the Principal Civil Judge (Sr.Division),
Dharwad and transfer the said suit to the Court

...2/-

of the Principal Civil Judge (Sr.Division),
Bagalkot for being tried with O.S.No.242/97 and
for disposal in accordance with law and etc.

BETWEEN:

Sri. Basavaraj Gurulingappa
Pundikatagi, Age: 33 years,
Occ: Business, R/o. Chilakwad
compound, Vivekanand Nagar,
Dist: Dharwad.

... PETITIONER IN
CP.557/1998

(By Sri.J.S. Shetty, Adv)

A N D :

1. Sri. Gurulingappa,
s/o. Parappa Pundikatagi,
Age: 60 years, Occ: Agri
R/o. Sri.Ganesh Building,
Laxminagar, Dist: Dharwad.
2. Sri.Shivakumar,
s/o. Gurulingappa Pundikatagi,
28 years, Occ: Business,
R/o. Sri.Ganesh Building,
Laxminagar, Dist: Dharwad.
3. Smt. Sharada,
w/o. Gurulingappa Pundikatagi,
Age: 55 yrs, Occ: Household,
r/o. -do-

... RESPONDENTS IN
CP.557/1998

(By Sri.S.G. Kulkarni, Adv)

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This CRP is filed under S c.24 CPC to
withdraw the suit in O.S.242/97 pending before
the Prl.Civil Judge, Bagalkot, at Bagalkot, and
transfer the same for disposal, in accordance with
law, to III Addl. Civil Judge, Dharwad in the ends
of justice and equity.

These CRPs coming on for orders this
day, the Court passed the followings:-

ORDER

...3/-

C.P. 510/98

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ORDER

These two petitions are filed under Sec.24 of CPC by the respective parties seeking transfer of case from Bagalkot to Dharwad and from Dharwad to Bagalkot respectively.

2. One Gurulingappa, the father of Basavaraj filed a suit in O.S.242/97 on the file of the learned Civil Judge(Sr. Division), Bagalkot on 4.11.1997 for partition of both immovable and movable properties, wherein he has arrayed his wife and children as defendants. Subsequently, one of the sons namely Basavaraju filed O.S.96/98 on the file of the learned Civil Judge (Sr.Division), Dharwad against the his parents and brothers and also one more defendant who is stated to have purchased the property from Gurulingappa for partition. Now, the said Gurulingappa has filed C.P.510/98 to transfer the case filed by his son Basavaraju in O.S.96/98 to Bagalkot Court and similarly, the said Basavaraju has also filed C.P.557/98 to transfer O.S.242/97 to Dharwad Court.



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3. Heard the learned advocates appearing for the respective parties.

4. It is contended by the learned counsel for the petitioner in CP.557/98 that he is residing in Dharwad; that he is financially not affluent to go to Bagalkot to contest the case pending in Bagalkot; that certain items of the properties are situated in Dharwad; that the defendants in his suits are also residing at Dharwad; that the suit summons issued were served on the defendants to the Dharwad address and that therefore it would be convenient to both the parties, if the suit is transferred from Bagalkot Court to Dharwad Court.

5. Repelling this argument, the learned counsel for the petitioner in CP.510/98 contended that most of the parties are residing in Bagalkot; that all the immovable properties except one item are situated in Bagalkot; that they are cultivating the properties; that the address given by Basavaraj in his suit is incorrect; on the other hand, they are permanently residing in Bagalkot; that Gurulingappa filed the suit first and thereafter the second suit came to be filed by Basavaraj and as such even on that ground itself the suit in O.S.96/98 will have to be transferred to Bagalkot Court.



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6. From the above facts, it is abundantly clear that there are two suits pending in respect of the same subject matter; for same purpose for partition and allotment of shares of each parties. The question to be considered is only the convenience of the parties. Admittedly, large number of immovable properties are situated in Bagalkot as per the schedule appended to the plaint of Basavaraj which is at Annexure-'A' to the plaint and only one of the item is situated in Dharwad. The distance between Dharwad and Bagalkot is 100 Kms. From the address given by Gurulingappa, it is also clear that the said Gurulingappa who is the retired Officer is residing with his children at Bagalkot. Except the house property which is situated at Dharwad all the agricultural lands are situated in Bagalkot. Parties are agriculturists. Under that circumstance, it can be presumed that the parties will have to reside in Bagalkot for the purpose of cultivating their lands. Besides, preference will have to be given to the petitioner who filed the suit at the earlier point of time. The learned counsel for Basavaraju submitted that before the suit summons were served on him in O.S.242/97 he had filed the suit in O.S.96/98. That cannot be construed as a deciding factor. On the other hand, the plaintiff Gurulingappa filed the suit at the earliest point of time as per the

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number given to that suit. Under those circumstances and viewed from any angle, I am of the considered view that O.S.96/98 pending on the file of the learned Civil Judge(Sr.Division), Dharwad should be transferred to the file of the learned Civil Judge (Sr.Division), Bagalkot to avoid any conflicting decision and inconvenience to the parties.

7. In the result, therefore, C.P.557/98 is dismissed, C.P.510/98 is allowed and O.S.96/98 pending on the file of the learned Civil Judge(Sr.Division), Dharwad shall stand transferred to the Court of the learned Civil Judge(Sr.Division), Bagalkot, with a direction to him to club both the cases and dispose of them in accordance with law.

8. Both the parties are directed to appear before the learned Civil Judge (Sr.Division), Bagalkot, on 19.1.1999. In view of this, notice to parties are dispensed with..

Sd/-
Judge

*alb/-